

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.

COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

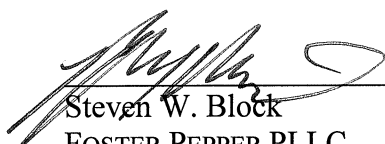
RESPONDENTS.

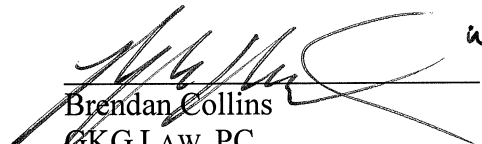
STIPULATION
OF COMPLAINANT CMI DISTRIBUTION, INC. AND
RESPONDENTS SERVICE BY AIR, INC. AND
RADIANT CUSTOMS SERVICES INC.
REGARDING TRANSPORTS NOT SUBJECT TO FMC JURISDICTION

Judge Guthridge having ordered the parties to consider and stipulate which transports at issue in this action did not arrive by water carriage into the United States, and therefore are not subject to the Shipping Act of 1984, Complainant CMI Distribution, Inc. ("CMI") and Respondents Service By Air, Inc. and Radiant Customs Services, Inc. (collectively, "SBA") hereby stipulate and agree as follows:

- 1) Attached as Exhibit 1 is the spreadsheet, attached to CMI's complaint herein, which specifies shipments CMI alleges were the subject of improper demurrage charges by SBA. Added to certain entries on the table's right side is an additional box wherein the parties specify by insertion of an "*" those shipments which did not enter the United States by water carriage, followed by the customs form 3461 entry number for each such shipment that arrived in the U.S. by means other than water carriage.
- 2) Determinations that the specified shipments did not enter the U.S. through a U.S. seaport were made based on comparison with each shipment's relevant customs form 3461, which show that the specified entries entered the U.S. via land on a Canadian railroad.

DATED this 18th day of September, 2017

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for
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Attorney for Complainant

CERTIFICATE OF SERVICE

The undersigned certifies under penalty of perjury under the laws of the State of Washington that I am now and at all times herein mentioned, a resident of the State of Washington, over the age of eighteen years, not a party to or interested in the above-entitled action, and competent to be a witness herein.

On the date given below, I caused to be delivered upon the designated party below in the manner indicated, true and correct copies of the following documents filed in the case:

1. STIPULATION OF COMPLAINANT CMI DISTRIBUTION, INC. AND RESPONDENTS SERVICE BY AIR, INC. AND RADIANT CUSTOMS SERVICES INC. REGARDING TRANSPORTS NOT SUBJECT TO FMC JURISDICTION W/EXHIBIT 1

David Street
Brendan Collins
GKG Law, P.C.
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1055 Thomas Jefferson Street NW
Suite 500
Washington, DC 20007
Attorneys for CMI Distribution, Inc.

- ☒ Via First Class U.S. Mail
- ☐ Via Priority Mail Express
- ☐ Via Express Mail
- ☐ Via Hand Delivery
- ☒ Via Electronic Mail
- ☐ Via E-Service Within Clerk's online eFiling Application

Phyllis Lang
LAS Freight System Ltd.
10th Fl, No. 44, Lane 11 Kuang Fu N. Rd.
Taipei, Taiwan
LSA Freight System Ltd.

- ☒ Via First Class U.S. Mail
- ☐ Via Priority Mail Express
- ☐ Via Express Mail
- ☐ Via Hand Delivery
- ☒ Via Electronic Mail
- ☐ Via E-Service Within Clerk's online eFiling Application

I declare under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Executed at Seattle, Washington, this 18th day of September, 2017.


Michelle Stark

EXHIBIT 1

DEMURRAGE

SBA PAYMENTS

N/A = NO DEMURRAGE INCURRED

FLDR	CONT #	FREIGHT #	INVOICE	ARRIVED	DATE RECEIVED	DAYS OF DEMURRAGE	SBA DEMURRAGE ACTUAL	
1	PCIU8685950	N612484	RR3555A	4/21/14	4/21/14	N/A	N/A	
2	PCIU8352944	N612485	RR3555-2	5/19/14	5/23/14	1	\$ 425.00	
3	MEDU3113127	N612525	HARBIN	5/28/14	6/11/14	11	\$ 1,905.00	
4	PCIU8269001	N770021	RR3555-3	6/13/14	7/11/14	25	\$ 2,793.00	*671-0140558-6
5	N/A LCL	N770087	N/A	7/6/14	7/14/14	N/A	N/A	
6	UACU5377170	N770461	CXINV140728	9/4/14	9/12/14	N/A	N/A	
7	UACU8183883	N770506	RR3555&R143670	8/28/14	8/26/14	N/A	N/A	
8	UACU8157328	N770519	R143704-1	9/5/14	9/9/14	N/A	N/A	
9	MEDU2212151	N770553	FPINV140808	9/6/14	9/19/14	10	\$ 1,535.00	
10	MSCU5926290	N770552	HXINV140808	9/18/14	9/26/14	5	\$ 250.00	
11	UACU5502837	N770520	4941	9/9/14	9/12/14	N/A	N/A	
12	PCIU8214837	N770614	R143704-2&671-1	9/12/14	9/24/14	9	\$ 1,855.00	*671-0142851-3
13	TTNU5524101	N770647	HXINV140820	9/25/14	10/1/14	3	\$ 1,781.25	
14	PCIU8702507	N770713	R143670	10/5/14	11/24/14	47	\$ 1,730.00	*671-0142739-0
15	BMOU4086576	N770779	R14367D&671	10/10/14	10/27/14	14	\$ 2,515.00	*671-0142875-2
16	TTNU4343813	N770856	HXINV140920	11/1/14	11/13/14	9	\$ 2,206.25	
17	MATU2315044	N770915	FPINV140926	10/12/14	11/24/14	40	\$ 3,740.00	
18	PCIU8207000	N770887	R143822	10/24/14	11/10/14	14	\$ 1,560.00	*671-0143209-3
19	CLHU8658659	B770924	INV5476	11/8/14	2/16/15	97	\$ 27,100.00	
20	PCIU8079300	N770888	WJ11140905435	10/24/14	10/28/14	1	\$ 1,400.00	*671-0143210-1
21	TCKU1771451	N771018	FPINV141010	12/5/14	12/12/14	4	\$ 950.00	
22	BMOU4378789	N771046	R143670	11/9/14	11/21/14	9	\$ 3,850.00	*671-0143752-2
23	PCIU8231881	N771045	WJ11140904435S	11/9/14	1/5/15	54	\$ 10,320.50	*671-0143753-0
24	PCIU8620754		WJ111409044355-	11/9/14	2/16/15	96	\$ 10,320.50	*671-0143753-0
25	TCLU4015624	B771043	HXINV141016	12/7/14	2/25/15	77	\$ 21,900.00	

26	TCNU5110840	B771105	WJ111409044359	11/21/14	3/18/15	114	\$ 35,700.00	*671-0143945-2
27	NYKU3251483	B771104	FPINV141023	12/19/14	2/18/15	58	\$ 14,300.00	
28	PCIU8687212	N77164	R143802	11/25/14	12/12/14	14	\$ 2,000.00	*671-0144579-8
29	TGHU1013740	N771189	FPINV141104	12/1/14	1/19/15	46	\$ 6,650.00	
30	FSCU852547	N771202	HXINV141103	12/3/14	1/15/15	40	\$ 7,525.00	*671-0144231-6
33	BMOU2709846	B771383	FPINV141128	2/14/15	3/17/15	31	\$ 9,600.00	
34	CAIU2795700	B771397	HXINV141203	1/22/15	2/16/15	25	\$ 6,900.00	*671-0144937-8
36	GLDU9630402	B771501	FPINV141216	1/24/15	2/13/15	20	\$ 6,325.00	
39	PCIU8812886	B771547	R143826-1	1/25/15	3/2/15	36	\$ 8,700.00	*671-0145433-7
42	TTNU5206116	B771584	CXINV150105	2/22/15	3/26/15	32	\$ 9,900.00	
43	TRIU5347886	B771645	CXINV150114	3/15/15	3/26/15	10	\$ 2,700.00	
44	CAXU4049893	B771678	FPINV150118	3/19/15	6/8/15	81	\$ 6,650.00	
45	GLDU9071069	B771679	R143828	3/9/15	5/12/15	64	\$ 14,625.00	*671-0145955-9
46	MSCU4807147	B771716	SSINV150127	3/27/15	4/14/15	18	\$ 8,400.00	
49	MSCU5881621	B771756	CXINV150130	3/27/15	4/17/15	21	\$ 4,200.00	
50	MSCU4271080	B771762	SSINV15205	3/30/15	5/20/15	51	\$ 12,250.00	
51	MSCU4867660	B771763	CXINV150205	4/3/15	4/17/15	14	\$ 3,600.00	
52	TRHU3313918	B771769	FPINV150205	3/26/15	5/12/15	47	\$ 14,100.00	
53	TRLU4651517	B771807	CXINV150213	3/31/15	5/26/15	56	\$ 8,735.00	
54	MSCU4337608	B771910	HXINV150301	4/4/15	5/29/15	55	\$ 7,154.00	
55	KKFU6731680	B851990	SSINV150301B	4/4/15	5/21/15	47	\$ 27,300.00	*671-0147486-3
56	KKFU6726637	B851990	SSINV150301A	3/31/15	5/22/15	52		
57	PCIU8592210	B851991	R149823	4/3/15	6/10/15	68	\$ 18,000.00	*671-0147081-2
58	MSCU5670932	B852112	SSINV150331	5/4/15	6/8/15	35	\$ 12,000.00	
59	KKFU1167644	B852232	SSINV150402	4/29/15	7/22/15	84	\$ 8,326.00	
60	KKFU1363499	B852230	CXINV150405	4/29/15	7/16/15	78	\$ 39,468.00	
61	KKFU1614383		CXINV150408	4/29/15	7/9/15	71		
62	MSCU5915505	B852231	SSINV150404	5/7/15	6/12/15	36	\$ 12,600.00	

TOTALS \$ 405,844.08

- Shipments marked with an * did not arrive by ocean transportation into U.S. seaports.
- The associated numbers identify the Customs Form 3461 entry number for each such shipment that did not arrive into U.S. seaports.